

HOUSE BILL 1039

By Garrett

AN ACT to amend Tennessee Code Annotated, Title 47,
Chapter 10, Part 1 and Title 66, Chapter 24, Part
2, relative to electronic recordings.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 47-10-118, is amended by adding the following as a new subsection:

(d) The following persons may submit electronic records for registration with a register of deeds that accepts electronic records under this chapter:

- (1) A licensed attorney;
- (2) A bank, savings and loan association, savings bank, or credit union doing business under laws of the United States or this state;
- (3) A federally chartered lending institution, a federal government-sponsored entity, an instrumentality of the federal government, or a person approved as a mortgagee by the United States to make federally insured loans;
- (4) A person licensed to make regulated loans;
- (5) A licensed title insurance company or title insurance agent; or
- (6) This state, or any county or municipality, utility district, school district, power district, sanitary district, or other political subdivision of this state, and any agency, authority, branch, bureau, commission, corporation, department, or instrumentality of such political subdivision.

SECTION 2. Tennessee Code Annotated, Section 66-24-203, is amended by deleting subsection (d) and substituting:

(d)

(1) A county register may receive for registration electronic documents transmitted by electronic filing vendors on behalf of those persons authorized to submit electronic records pursuant to § 47-10-118(d).

(2) Subject to the requirements under subdivision (d)(1), a county register may receive for registration electronic documents created by making a digitized image of an original paper document that is eligible for registration and has the certification required by § 66-24-101(d).

(3) All recordings of electronic documents eligible for registration pursuant to this subsection (d) are validly registered when accepted for recording by the county register. It is the responsibility of the electronic filing vendor, and not the county register, to ensure that the vendor is only transmitting electronic documents to county registers from persons authorized to submit electronic records pursuant to § 47-10-118(d). An electronic filing vendor is liable for any damages resulting from the vendor's failure to comply with this section.

SECTION 3. Tennessee Code Annotated, Section 66-24-204(a), is amended by adding the following as a new subdivision:

(10) May only accept for registration documents transmitted by electronic filing vendors on behalf of those persons authorized to submit electronic records pursuant to § 47-10-118(d). It is the responsibility of the electronic filing vendor, and not the county register, to ensure that the vendor is only transmitting electronic documents to county registers from persons authorized to submit electronic records pursuant to § 47-10-118(d). An electronic filing vendor is liable for any damages resulting from the vendor's failure to comply with this subdivision (a)(10).

SECTION 4. This act takes effect July 1, 2025, the public welfare requiring it.